

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN KENYA

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Kenya, grounded in the constitutional, licensing, and tribunal system and documented campaigns

This guide uses the Kenyan legal terms you will actually encounter (the ESIA licence, the National Environment Tribunal, the Environment and Land Court, public participation, and so on), each defined on first use and in the Glossary. It describes the national framework; Kenya is devolved into 47 counties with their own planning roles — check locally.

A note on terms. Important terms are shown in **bold** the first time they appear, and each is defined in the **Glossary at the end of this guide.**

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INTRODUCTION & FRAMEWORK

Why This Matters

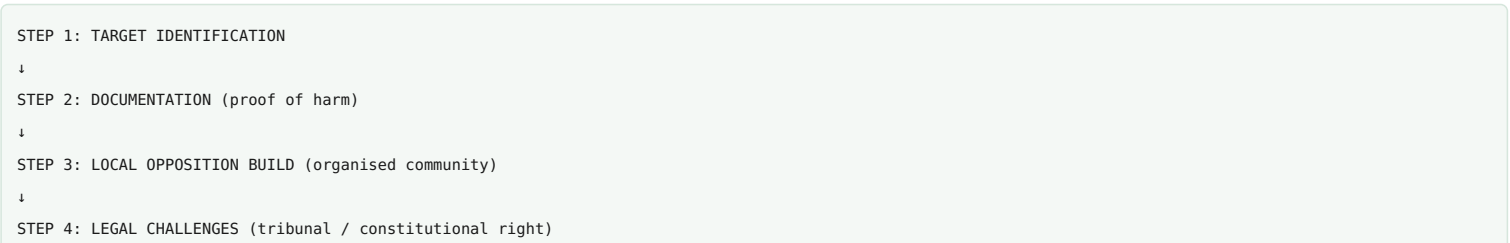
Community action directly determines project outcomes in Kenya. Projects that clear every political and commercial hurdle still fall when opposition is organised, documented, and legally sharp. When the government and a well-funded company moved to build a huge coal-fired power plant near **Lamu**, the community coalition **Save Lamu** took the environmental licence to the **National Environment Tribunal** — and in 2019 the Tribunal **revoked the licence**, holding that the environmental study was inadequate and, above all, that the public had not been meaningfully consulted; "public participation," the Tribunal said, "is the oxygen that gives life to" an environmental study. Across the country, communities using **public participation**, the **constitutional right to a clean and healthy environment**, and the **Tribunal** have forced projects to be refused, revoked, redesigned, or abandoned. These outcomes were not inevitable; communities made them happen.

But most communities don't know **HOW** to make opposition effective. They attend one meeting, then give up. They assume "NEMA will refuse it" without building public pressure, documenting the gaps, or appealing to the Tribunal. They generate coverage without a strategy. They organise people and then lose them to burnout after a few months.

This guide shows what actually works — in the Kenyan system.

The Strategic Framework

Successful opposition campaigns follow the same basic pattern:



STEP 5: MEDIA STRATEGY (public visibility)

These operate SIMULTANEOUSLY (not sequentially)

Each step amplifies the others

Multi-tactic pressure compounds toward victory

Why the legal step matters so much here: Kenya gives communities a distinctive and powerful set of levers. The **2010 Constitution** guarantees every person a **right to a clean and healthy environment** (Article 42) and lets **anyone** go to court to enforce it — and, remarkably, an applicant **does not have to show that any person suffered loss or injury** (Article 70). A project's **ESIA licence** from **NEMA** can be appealed to a dedicated **National Environment Tribunal (NET)**, and then to the specialised **Environment and Land Court (ELC)**. And **public participation** is not a formality but a constitutional requirement — the ground on which the **Lamu** coal plant fell. No Kenyan campaign should be planned without understanding these.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Before you invest time, money, and emotional energy, understand this:

First, a definition. This guide calls it a **system tilted toward approval** (sometimes called *institutional bias*). It does not mean anything illegal. It means the bodies that decide on a project lean toward approving it — because the national government is pushing big infrastructure, because counties want investment and jobs, or because the developer's own consultants prepare the environmental study.

When these factors are present, opposition becomes harder. It does not become impossible. It becomes slower and more expensive and has a lower chance of stopping a project outright — but it still routinely wins revocations, conditions, redesigns, and delay. Where there is genuine misconduct — bribery, an undisclosed conflict of interest, the offences the anti-corruption bodies handle — that is a different and more serious problem, covered in Section 11.

This is covered in Sections 10 and 11. Read them before committing resources.

HOW THE SYSTEM WORKS: WHO DECIDES, AND HOW

If you've never dealt with how projects get approved, read this section first. It explains, in plain terms, who holds power over a development in Kenya, how a decision gets made, why the money so often points toward "yes," and the handful of words you'll need. Every term is defined here on first use. The rest of the guide assumes you know this map.

The levels of government — and what each one controls

Kenya is a devolved republic with a national government and **47 county governments**, and a strong constitutional emphasis on **public participation**.

- **National government** — the **Ministry of Environment** sets policy; the **National Environment Management Authority (NEMA)** issues the **environmental (ESIA) licence** that most significant projects need; the sector ministries and agencies handle energy, roads, and major infrastructure; the **National Land Commission** oversees public land.
- **County governments (the 47 counties)** — control **physical and land-use planning**, county approvals, and some environmental functions, and must run their own **public participation**.

So which body decides *your* project?

- A mine, power plant, dam, port, road, factory, or big development → an **environmental (ESIA) licence** from **NEMA**, based on an **Environmental and Social Impact Assessment (ESIA)** — and this is where **public participation** must happen.
- The physical/land-use approvals → the **county government**.
- Anything on **community land** (registered to a community, common for pastoralist and coastal communities) → the community's consent and the **Community Land Act** process.

The expert and decision bodies

- **NEMA** — evaluates the ESIA and decides the licence.
- **The Ministry, the county, and independent experts** — set policy and assess effects.
- **The Tribunal, the specialised court, and the oversight bodies** — the accountability bodies (see the overseers, below, and Section 11).

How a decision is actually made — the licence journey

For a project that may affect the environment, the developer must obtain an **environmental (ESIA) licence** from **NEMA**:

1. **Project report and study** — the developer files a project report; for a significant project, NEMA requires a full **ESIA study**.
2. **Public participation** — the developer and NEMA must **consult the public** — meaningfully, with real information about the

- project's likely effects. **This is the decisive stage.** Attend, speak, submit written comments, and record who was (and wasn't) consulted and what they were told.
3. **Decision** — NEMA **grants, conditions, or denies** the ESIA licence.
 4. **Appeal** — the licence (or its refusal) can be appealed to the **National Environment Tribunal (NET)** — generally **within 60 days** — and then to the **Environment and Land Court**.

A **defective ESIA, or inadequate public participation** — as at Lamu — is the single strongest ground to have a licence revoked. Harm to a protected area, a water source, or **community land** adds further grounds.

The rulebook — the laws that decide the outcome

- **The 2010 Constitution** — the right to a **clean and healthy environment** (Article 42); the state's environmental **obligations, including public participation** (Article 69); **enforcement** of the right, with **no need to show injury** (Article 70); **public participation** as a national value (Article 10); the **right to information** (Article 35); and **broad standing** to sue in the public interest (Articles 22 and 258).
- **The Environmental Management and Coordination Act (EMCA)** — the framework environmental law, NEMA, the ESIA system, and the **precautionary** and **polluter-pays** principles.
- **The EIA/Audit Regulations** — the detailed rules the Lamu licence broke.
- **The Climate Change Act**, the **Community Land Act**, and the **land and planning laws**.
- **The Access to Information Act** — the right to information.

Follow the money — why the system often leans toward "yes"

- **The national government** promotes big infrastructure (ports, roads, power, corridors, special economic zones), so there is strong official pressure to approve.
- **Counties** compete for investment and jobs.
- **Developers** are often large companies, and — importantly — the **ESIA is prepared by the developer's own consultants (experts)**, so it tends to read in the project's favour.
- Most projects that reach a decision are licensed, with conditions.

None of this makes a decision inevitable. It explains why a decision rarely tips your way on its own — it takes organised, evidenced pressure.

The overseers — who watches the decision-makers

- **The National Environment Tribunal (NET)** — hears appeals against NEMA's licence decisions and can **revoke** a licence (as at Lamu); the **Environment and Land Court (ELC)** — a specialised superior court that hears appeals from the NET and constitutional environmental claims, and can grant injunctions; then the **Court of Appeal** and **Supreme Court**.
- **The oversight bodies** — the **Ethics and Anti-Corruption Commission (EACC)**, the **Director of Public Prosecutions (ODPP)**, and the **Auditor-General** (see Section 11).
- **The Ombudsman (Commission on Administrative Justice, CAJ)** — which enforces the right to information — and the **Kenya National Commission on Human Rights (KNCHR)**.

QUICK REFERENCE: SUCCESS RATES BY STEP & COMBINATION

These ranges describe the general effectiveness of each tactic drawn from documented opposition campaigns. They are patterns, not guarantees. In Kenya, the variable most likely to push a campaign above these ranges is a well-founded challenge on a real defect — above all **inadequate public participation** or a **defective ESIA** — carried through the **National Environment Tribunal** (Step 4).

Individual Step Success Rates

Step	Success Rate	Timeline	Cost (KES)	What "Success" Means
Documentation Only	5-10%	3-4 months	KES 5 million	Project slowed, public awareness only
Opposition Only	15-20%	6-12 months	KES 13 million	Public pressure, minor modifications
Legal Only	20-30%	12-24 months	KES 0-9 million	Slow; strong if the defect is real
Media Only	10-15%	3-6 months	KES 5 million	Public knows, but no action
Docs + Opposition	25-35%	12 months	KES 16 million	Slowed, some modifications
Docs + Legal	30-40%	12-18 months	KES 20 million	Stronger legal arguments
Opposition + Legal	35-45%	12-18 months	KES 24 million	Political pressure strengthens the case
Opposition + Media	30-40%	9-12 months	KES 16 million	Visibility creates political pressure
All 5 Steps Combined	60-75%	12-24 months	KES 30 million	Licence revoked/refused/modified or project halted

Key insight: All five steps together = 3-4x more effective than any single step.

A note on legal cost: standing is broad and cheap in Kenya — anyone can enforce the environmental right, with no need to show injury, and the National Environment Tribunal is relatively accessible. Public-interest organisations (such as Katiba Institute, Natural Justice,

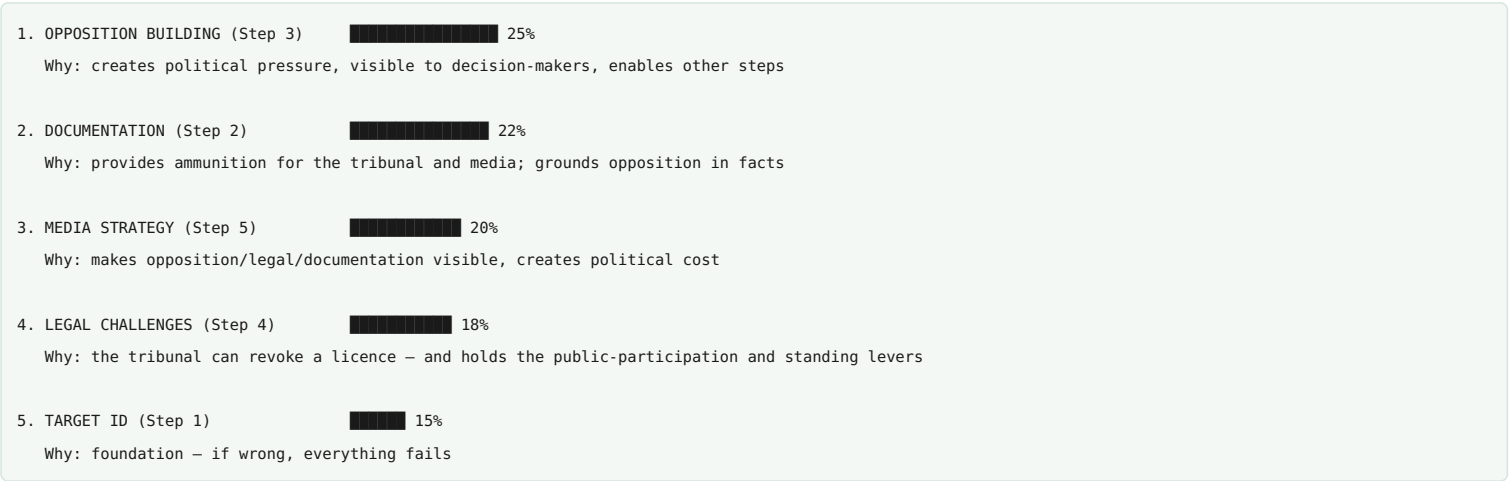
the Kenya Human Rights Commission, and law-school clinics) take these cases, often at no charge — so the "Legal" figures are not a hard floor. The main cost is expert evidence.

Effectiveness Visualization



One important point: a single clear legal defect — most powerfully **inadequate public participation**, or a **defective ESIA** — can lead the **Tribunal** to revoke a licence even where the politics favour the project, because it is applying a legal standard the authority cannot ignore. That is exactly what happened at **Lamu**. (A revoked licence can be re-applied for after a proper, fresh ESIA — so an early win may need defending; at Lamu, the revocation was appealed and then **upheld** years later.)

Step Importance Ranking (When All Combined)



Real insight: a large, organised, visible community that has also turned out for **public participation** and documented its gaps is far more powerful than perfect documentation or a brilliant legal argument standing alone — because inadequate participation is the ground that wins.

STEP 1: TARGET IDENTIFICATION

Time to complete: Weeks 1-4
Cost: KES 0
Outcome: A clear picture of what you're fighting, who decides, and when the decision is final

Core Questions You Must Answer

Before you organise a single person, answer these precisely.

Question 1: What Exactly Will Be Destroyed?

Not: "Environmental damage"
But: "The plant will emit [X] over the fishing grounds and mangroves that [number] families depend on, next to a protected heritage area."

Not: "Pollution"
But: "The project will discharge [X] into the [named] river/ocean, over the fishing and farming that [community] depends on."

Not: "Community harm"
But: "The project takes [X] hectares of the registered **community land** of [community] without their consent."

Why this matters: specific harms are easier to document, litigate, and organise around. Vague opposition dies; specific opposition survives. Harm to **community land**, a protected or heritage area, a water source, or fisheries also opens a **specific legal front** — and gaps in **public participation** are the sharpest ground of all.

Question 2: Who Decides?

You cannot pressure an abstraction. Identify the decision-maker precisely — it is usually one of these:

- **NEMA** — for the **ESIA licence** (the central decision).
- **The county government** — for physical/land-use planning approvals.
- **The community** — whose consent is needed for **community land**, and the national ministry/agency for a flagship project.

Write it down concretely: "NEMA will decide the ESIA licence after the ESIA study and public participation. The project sits on community land and next to a heritage area, so consent and heritage rules also apply — and any licence can be appealed to the NET within 60 days."

Question 3: What Specific Action Stops It?

Not: "Stop the project"
But: "Persuade NEMA to deny the licence, or win a revocation at the Tribunal" — or, if refusal is unrealistic, "obtain strict conditions, real compensation, and a redesign."

Not: "Protect the environment"
But: "Show the **public participation** was inadequate, or the **ESIA** is defective, and appeal to the **National Environment Tribunal**."

Why this matters: you can demand something achievable. Vague demands are easy to ignore; specific ones create measurable pressure and, if the process is unlawful, become the ground for the Tribunal to act.

Question 4: When Is the Decision Final?

Timeline tells you how much time you have. Map every date: when the **ESIA** is filed, the **public-participation** meetings, the licence decision, and the **60-day** window to appeal to the **NET**. Don't wait: turn people out for the public participation (and record its gaps), request the documents early (use the **Access to Information Act**), and be ready to appeal quickly.

Question 5: Are There Documented Financial or Policy Pressures?

This is the tilted-system assessment question. Know it BEFORE you organise:

- Is the project a **flagship national project** or part of a big corridor, hardening political backing?
- Is the **ESIA** prepared and paid for by the developer's own consultants only?
- Does the county depend on the project for jobs and investment?
- Is the developer a large company with deep resources for studies, lawyers, and appeals?
- Is there a land-grabbing or contested-land dimension that raises the stakes and the risk?

Why this matters: if strong national/flagship backing or developer-controlled studies are present, opposition must overcome different barriers (Section 10). It doesn't mean opposition can't work — Lamu was a flagship project and it fell — it means realistic expectations

and a focus on the **public-participation** and **ESIA** defects, on conditions, and on the **Tribunal**, rather than a straight political refusal.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

- Time to complete:** Months 1-4
- Cost:** KES 5-8 million (KES)
- Outcome:** Three polished reports (30+ pages total) showing specific, quantified harms
- Success Rate (Documentation Alone):** 5-10%
- Success Rate (Documentation + Opposition):** 25-35%
- Success Rate (Documentation + Opposition + Legal + Media):** 60-75%

The Three Documentation Layers

Documentation turns vague opposition ("This is bad") into undeniable evidence ("This specific harm will occur to these specific people/places at these specific costs"). Success comes from three layers working together — and, in Kenya, one of the most valuable things you can document is **who was not properly consulted, and what they were not told**.

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

- What it is:** documentation of existing conditions BEFORE the project begins — including who lives on and uses the land and waters, and how, and how the public was (or wasn't) consulted.
- Why it matters:** developers claim "the land is idle" or "the community supports it." Baseline documentation proves what — and who — was there, and how thin the consultation really was.

Documented case — Save Lamu and the Lamu coal plant

The government and a well-funded company planned Kenya's first **coal-fired power plant** — a 1,050-megawatt project — near **Lamu**, beside an archipelago whose mangroves, seagrass, coral reefs, fisheries, and world-renowned heritage sustain the local economy. **NEMA** granted the environmental licence. Its backers treated the project as a done deal. The community made that impossible. Organised as **Save Lamu** — a coalition of dozens of community groups, working with the **deCOALonize** campaign and public-interest lawyers — residents documented what the licence had glossed over: the threats to health, fisheries, and heritage, and, decisively, **how little the public had actually been consulted** — meetings that were introductory, held before the real study, and never structured to tell people what the plant would do to them.

It changed the outcome. In June 2019, the **National Environment Tribunal revoked the licence**, ruling that the environmental study was inadequate and the public participation deficient — "public participation is the oxygen that gives life to" an environmental study, the Tribunal said. No construction could begin. The community's documented case — the gaps in the study, and above all the gaps in consultation — was what won. (Honesty matters here: the company appealed, and the community had to defend the win for years — but in 2025 the **Environment and Land Court upheld the revocation**, making it durable.)

- Why it matters for you:** Save Lamu's documentation — of the flawed study and the hollow consultation — was decisive. Documenting existing conditions, who depends on the land and waters, and exactly how the public participation fell short, is the foundation of everything that follows.

Building your own baseline (typical process). Document existing conditions before the project starts, because a developer will claim the land is idle and baseline cannot be reconstructed later. A workable approach: surveys across a season cycle of the project area plus reference sites; a species and habitat inventory with GPS locations, flagging anything protected that the developer's **ESIA** omitted; a record of who occupies and uses the land and waters — farming, fishing, grazing, gathering, heritage sites — and whether it is registered **community land**; the **water systems and fisheries** the community depends on; proximity to any protected or heritage area; water and air baselines; and — critically in Kenya — a careful record of the **public-participation process**: who was invited, who actually attended, what information they were given, and who was left out. Typical cost is around KES 4.5-6 million for a qualified expert (consultant), GPS, and testing — reducible with knowledgeable community members, university researchers, and naturalists. Dated, same-spot photographs, geo-referenced maps, and attendance records make it credible.

LAYER 2: IMPACT ANALYSIS

- What it is:** detailed analysis of what specific harms will occur, based on the project description plus your baseline.
- Why it matters:** it shows not just "something bad" but "specifically THIS BAD in THIS WAY" — and it maps directly onto what the **ESIA** and the participation rules require.
- Use the developer's own words and the legal tests.** Powerful, documentable weak points in Kenyan assessments include:
 - **Inadequate public participation.** The **ESIA** process must include meaningful public consultation — real information, real chance to be heard. Thin, introductory, or mis-timed consultation is the single strongest ground, as at **Lamu**.

- **A defective ESIA.** The study must genuinely assess the project's significant impacts, alternatives, and mitigation, and their adequacy. Omissions or understatements are strong grounds.
- **Harm to community land, protected areas, water, or fisheries.** These carry additional, specific protections.

Convert each of the developer's admissions ("temporary disturbance," "limited effect") into a quantified prediction against your baseline.

Outcome (illustrative): inadequate **public participation** or a defective **ESIA** can lead the **Tribunal** to revoke the licence — halting the project, and requiring a fresh, proper process.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

What it is: quantification of the human-health and economic costs to the community.

Why it matters: decision-makers and the public respond to human cost. "X hectares affected" matters less than "an estimated 45 additional respiratory cases a year, and KES X of health cost" — or "the fisheries and tourism that sustain [number] families destroyed."

Method: use recognised air-quality or water modelling and the public-health literature to translate emissions or resource loss into health and livelihood outcomes, then attach costs — additional respiratory and cardiovascular cases, lost fishing, farming, and tourism income, and total annual and lifetime cost for the affected population.

Outcome (illustrative): an independent health-and-livelihood analysis can move a county or the national government, feed the Tribunal case, and force conditions the original design lacked.

How to Structure Your Documentation

Phase 1: Baseline Conditions (Months 1-2)

Engage a qualified expert/consultant (or use knowledgeable community members, university researchers, and naturalists); document conditions AND human occupation, use, community-land status, fisheries, heritage — and the public-participation record. **Deliverable:** a 20-30 page baseline report with inventory, a record of use and consultation, water/air data, dated photographs, and geo-referenced maps.

Phase 2: Impact Analysis (Months 2-3)

Obtain the **ESIA** and the licence file (use the **Access to Information Act**); identify specific impacts; test the study and the participation against the rules. **Deliverable:** a 20-30 page impact analysis with quantified predicted impacts, comparison to baseline, the participation gaps, and the developer's own admissions quoted back.

Phase 3: Health/Economic Analysis (Months 3-4)

Identify affected populations; estimate health and livelihood impacts and costs. **Deliverable:** a 15-20 page report written for the public and press.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data.** Documented data beats perfect data that arrives after the licence.
- **Only environmental data.** Add health, livelihood, and human-occupation impacts — the arguments that move decision-makers, the Tribunal, and the public.
- **No independent check.** A report the authority can dismiss as "activist material" is far stronger after an independent expert or a university reviews it.
- **Ignoring the participation record.** In Kenya, the gaps in **public participation** are often your strongest ground — document them carefully (who, when, what information).
- **Ignoring the developer's own admissions.** Their **ESIA** is your best source; quote it against itself. Use the **Access to Information Act** to get it and the file.

Documentation Budget Breakdown (KES)

Item	Cost	Notes
Expert / consultant (baseline + species ID)	KES 3.6 million	Protected-species and habitat survey
GPS / survey equipment	KES 350,000	Mapping/documentation
Water/air testing	KES 900,000	Sampling across seasons
Independent / university expert review	KES 650,000	Credibility
Printing / information requests / translation	KES 300,000	Copies (and Kiswahili translation)
TOTAL	KES 5.8 million	Reducible with university partners and community members

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE COMMUNITIES THAT HOLD

Time to complete: Months 2-6 (foundation), 6-12 (sustained)

Cost: ~KES 13 million (KES) for a full year

Outcome: 50-100 core people, 5-10 organisations, sustained organisation

Success Rate (Opposition Alone): 15-20%

Success Rate (Opposition + Documentation + Legal + Media): 60-75%

Critical Insight About Organising

Most opposition campaigns fail not because they can't build opposition, but because opposition burns out after 4-8 months.

You need structures that prevent it. (Save Lamu's coalition held together across nearly a decade — that endurance is what won.)

PHASE 1: FOUNDATION (Months 1-2)

Goal: a core group of 15-20 motivated people and a clear picture of their concerns.

Step 1a: One-to-One Conversations

People don't join movements from pamphlets; they join from relationships. Identify the 15-20 people most affected or interested. **Talk to** each in person for an hour. Ask: "What's your biggest concern about this project?" Listen — don't pitch. Ask what they'd be willing to do. Each person has a different concern (land, water, fishing, health, heritage, a way of life). Opposition organised around each shared concern is stronger than one generic message.

Step 1b: Affinity Groups by Concern

Organise small groups (3-8 people) around a shared concern, not around "opposition":

- **Land/livelihood group** — farming, fishing, grazing, community land, displacement and compensation

- **Water/fisheries group** — the rivers, ocean, mangroves, contamination

- **Health group** — air quality, water quality, disease

- **Heritage/culture group** — sacred and heritage sites, way of life

Each group meets regularly and works out how opposition serves *their* interest, coordinating while keeping its own framing.

Step 1c: Use the Community's Own Structures and Register a Vehicle

Two things matter. First, Kenyan communities have real structures — village and ward committees, community-based organisations (CBOs), faith groups, beach management units (for fishing communities), and, for **community land**, the registered **community** whose consent is required; a clear, recorded community position carries weight. Second, forming a **coalition** with a name and a registered vehicle (a CBO, a trust, or a company limited by guarantee) — as Save Lamu did — lets you speak publicly, receive donations, and support litigation. Partner with established organisations (such as Katiba Institute, Natural Justice, or the Kenya Human Rights Commission) early.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Goal: announce opposition to the public, the media, and decision-makers.

Step 2a: Public Meeting (baraza / community forum)

Hold a **baraza** (community meeting) or forum where people set out their concerns to themselves, to the county and national officials, and to press. A serious, informational meeting carries weight. Typical shape: welcome → project explanation → community concerns (each person a few minutes) → expert Q&A (an ecologist, a health voice, a lawyer) → next steps.

Step 2b: Opposition Materials (Factsheets)

One page, in English and Kiswahili (and the local language where relevant). Decision-makers and neighbours won't read 30 pages; one page gets read. Structure: a headline stating the problem → quick quantified facts → the specific impact → **what you're asking for** → the evidence base → contact/resources. Print widely; distribute at markets, the chief's office, churches and mosques, health posts; post a digital version. Cost: ~KES 300,000.

Step 2c: Public Participation — Turn People Out and Document the Gaps (the decisive record)

This is the pivotal Kenyan moment. When the **ESIA public participation** is held, **turn people out to attend, speak, and submit written comments**, each raising real grounds — a defective ESIA, harm to fisheries or community land, health effects — and, just as importantly, **document the process**: who was invited and who wasn't, what information was (and wasn't) shared, whether meetings came before or after the study, and whether people could meaningfully respond. Inadequate participation is the ground that revoked the

Lamu licence — so building this record is often the single most valuable thing you do. Cost: ~KES 250,000.

Step 2d: Media Coverage at Launch

Release data + concerns + the participation record = a story. (Full press-release example is in Section 9, 9G.) Contact reporters, then send the study. Expect 1-3 local stories.

PHASE 3: COALITION EXPANSION (Months 3-6)

Goal: grow from 20 core people to 50+ core plus 5-10 organisations.

Step 3a: Organisation Outreach

Approach environmental and rights organisations — **Katiba Institute**, **Natural Justice**, the **Kenya Human Rights Commission (KHRC)**, **Greenpeace Africa**, **deCOALonize** and coastal/relevant networks, **Article 19 Eastern Africa**, university law and science departments, faith bodies (which carry real weight in Kenyan communities), beach management units, pastoralist and community-land organisations, and businesses that lose from the project. Research each; contact the right person; explain how opposition serves *their* aims; make a specific, tailored ask.

Tailored asks:

- **Katiba Institute / Natural Justice / a legal clinic:** "We need help preparing a Tribunal appeal and the public-participation grounds — can you assist?"
- **A university group:** "Would your researchers assess the fisheries or health impacts independently?"
- **A community-land / pastoralist organisation:** "Help us assert the community's consent rights."
- **Faith leaders / beach management units:** "This takes the land and waters we depend on — will you speak and stand with us?"

Step 3b: Coalition Agreements (Written)

A written agreement — who's in, how decisions are made, meeting frequency, the public message, who may speak for the coalition, conflict resolution, money, and an exit clause — prevents later conflict. Consensus is stronger but slower; voting is faster but can fracture.

Step 3c: Coordinated Public Work

Assign leadership by strength: environmental analysis to the NGO/university; community land and consent to the community and its committees; livelihood to the fishing and farming groups; media to whoever has the contacts; the legal track to the law group and the coalition vehicle. Sequence activities so each builds momentum (coalition launch → data release → public participation → Tribunal appeal).

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Goal: maintain organised opposition across a 12+ month timeline.

Step 4a: Public Demonstrations (peaceful pickets / marches)

Regular, same time and place, growing attendance — outside NEMA, the county offices, or at the site. Handle logistics and **safety**: notify the authorities of a public assembly as the law requires, provide marshals, ensure accessibility, and agree a safety protocol (Section 9 — civic space in Kenya carries real risks). Momentum matters: "50 gather" becomes "gathering grows to 500."

Step 4b: Media Campaign (Ongoing)

Monthly rhythm: week 1 a release tied to an event/data; weeks 2-3 social media 3x/week; week 4 a reporter check-in. Rotate themes (participation gaps documented → expert finding → coalition growth → march → Tribunal appeal filed).

Step 4c: Common Opposition Failure Points (How to Prevent)

Failure Point 1: Burnout (Months 4-8). Prevent it: regular (not constant) meetings; celebrate milestones; fund one part-time coordinator; schedule breaks; keep a public progress tracker. The campaigns that endure — like Save Lamu, which held for years — are the ones that win.

Failure Point 2: Coalition Conflict. Prevent it with a written agreement and decision process, a clear escalation path (discuss → mediator), an explicit exit clause, and rotating leadership. Be alert to developers trying to split a community with jobs, "development" offers, or by co-opting some leaders; keep decisions transparent and collective.

Failure Point 3: Competing Funding. Grants with conflicting conditions can pull groups off shared work. Coordinate grants up front and agree no group commits coalition resources without a coalition decision.

Failure Point 4: No Clear Wins. Name milestones as victories (coalition launched, participation gaps documented, a large baraza, the Tribunal appeal filed and accepted) and publicise cumulative progress.

Opposition Building Budget: Year-Long Campaign (KES)

Item	Cost
Factsheet printing	KES 450,000
Website/phone/data (annual)	KES 350,000
Meeting / venue costs	KES 650,000
Outreach travel (often remote areas)	KES 2.2 million
Participation / documentation materials	KES 130,000
Demonstration supplies (banners, sound)	KES 900,000
Coalition meeting costs	KES 650,000
Part-time coordinator (12 months)	KES 6 million
Social-media / content (part-time, 3 months)	KES 1.4 million
Fundraiser/event costs	KES 800,000
TOTAL	KES 13.4 million

Funding the campaign. Money typically comes from four places: individual donations (local collections and online fundraisers, plus dedicated legal-cost appeals); grants from environmental and rights funders (long lead times — apply early); benefit events; and in-kind support from coalition organisations (expertise, meeting space, volunteer time). A registered CBO or trust can receive donations and, where eligible, grants. Aim to raise half the budget by month 6 and the rest by month 12. **Reductions:** use a volunteer coordinator, or run a shorter 6-month campaign, to cut ~KES 6 million; and standing is broad and the Tribunal accessible, with public-interest organisations often acting at no charge.

STEP 4: LEGAL CHALLENGES — THE TRIBUNAL, THE CONSTITUTIONAL RIGHT, AND PUBLIC PARTICIPATION

Time to complete: the Tribunal appeal must be filed fast (generally within 60 days); cases run 6-24 months

Cost: KES 0-9 million (KES; standing is broad and cheap, and the Tribunal is accessible)

Outcome: a licence revoked or refused, a project halted, conditions, or a project shelved

Representation impact:

- Experienced environmental/constitutional lawyers or a public-interest law group: 35-45% favourable-outcome likelihood
- General or less specialised representation: 25-35%
- Self-representation: 5-15%
- **A key advantage:** standing is exceptionally broad — **anyone** can enforce the environmental right, **with no need to show loss or injury** — and the **National Environment Tribunal** is relatively accessible; public-interest organisations (Katiba Institute, Natural Justice, the KHRC, law clinics) take these cases, often at no charge.

Success Rate (Legal Only): 20-30%

Success Rate (Legal + Opposition + Media): 60-70%

Kenyan legal strategy has three tracks, and two features make it powerful: **broad standing** and the decisive weight of **public participation**.

TRACK 1: PARTICIPATION AND THE PAPER TRAIL (the front door)

Most fights are shaped here, on the record, before the Tribunal — and in Kenya, this is where cases are won.

- **Turn out for public participation — and document the gaps.** Attend the **ESIA public-participation** meetings, speak, and submit **written comments** raising real grounds. Just as important, **record the process:** who was invited and who wasn't, what information was shared, whether meetings came before or after the study, and whether people could meaningfully respond. This record is the ground that revoked the **Lamu** licence.
- **Use the Access to Information Act.** Request the **ESIA**, the licence, and the file from NEMA (and, where relevant, from the developer) — the Act reaches information needed to protect the environment or a right, and even some private bodies.
- **Assert community-land consent.** For registered **community land**, put the consent requirement on the record.

Why this track matters: turning out for participation and documenting its gaps — specific, recorded, grounded in the law and the evidence — often does more than any amount of noise, and it builds the case you'll need for Tracks 2 and 3.

TRACK 2: PUBLIC PARTICIPATION, THE ESIA, AND THE CONSTITUTIONAL RIGHT (the strongest cards)

Several grounds make this powerful.

- 1. Inadequate public participation.** This is the sharpest ground in the Kenyan system. The **ESIA** process must include **meaningful** public consultation — real information, real timing, a real chance to be heard. Thin, introductory, or mis-timed consultation — as at **Lamu** — is enough to have a licence **revoked**. Document it, and lead with it.
- 2. A defective ESIA.** The study must genuinely assess the significant impacts, alternatives, and mitigation, and their adequacy. Omissions or understatements are strong grounds.

3. The constitutional right — with broad standing. Article 42 guarantees the right to a clean and healthy environment; Article 70 lets **anyone** enforce it, and — crucially — an applicant **does not have to show that any person suffered loss or injury**. Combined with the public-interest standing in Articles 22 and 258, this means the courthouse door is wide open. The **precautionary** and **polluter-pays** principles in EMCA reinforce the case.

TRACK 3: THE TRIBUNAL, THE SPECIALISED COURT, AND INTERIM ORDERS

- Match the tool to the goal:
- **The National Environment Tribunal (NET)** — hears appeals against **NEMA's** licence decisions, generally **within 60 days**, and can **revoke** a licence and stop a project (as at **Lamu**). This is usually the first and most important forum.
 - **The Environment and Land Court (ELC)** — a specialised superior court that hears **appeals from the Tribunal** and direct **constitutional environmental petitions** (Articles 42, 69, 70), and can grant **injunctions and preservation orders** to halt works meanwhile.
 - **Interim / preservation orders.** Where works are imminent, ask the ELC for an **injunction or preservation order** to stop them while the case runs.
 - **The Court of Appeal and Supreme Court** — for the final stages.

Be realistic about two things. First, a revoked licence can be **re-applied for** after a fresh, proper ESIA and genuine participation — so an early win may need defending, and works can resume if the developer fixes the process. But defending it can succeed all the way: at **Lamu**, the 2019 revocation was appealed and, in 2025, **upheld**. Second, the political ground matters: a **flagship national project** has heavy backing — so lead with the cleanest legal ground (**participation**, the **ESIA**), keep opposition and media pressure alive, and be ready for the long haul.

Legal Strategy Decision Tree

START: Is an ESIA in process, or a licence issued?

└ IN PROCESS → Turn out for PUBLIC PARTICIPATION and DOCUMENT THE GAPS (Track 1).

| Use the Access to Information Act. Assert community-land consent.

└ ISSUED → Note the 60-DAY window to appeal to the NATIONAL ENVIRONMENT TRIBUNAL.

Seek an INJUNCTION/PRESERVATION ORDER at the ELC if works are imminent.

Q1: What is the defect?

└ Inadequate public participation → NET appeal (strongest ground – the Lamu ground).

└ Defective ESIA → NET appeal.

└ Harm to community land / protected area / fisheries → add these grounds.

└ The right to a clean, healthy environment threatened → ELC constitutional petition

| (no need to show injury).

└ No real defect (lawful process, you just disagree) → focus on opposition + media.

Q2: Who can bring it?

└ ANYONE – no need to show loss or injury (Art. 70(3)); or in the public interest

(Arts. 22 & 258). The door is wide open.

Q3: Are works imminent?

└ YES → seek an INJUNCTION/PRESERVATION ORDER at the ELC to halt them.

Q4: Budget?

└ KES 0 → File the NET appeal / constitutional petition with a public-interest group.

└ KES 0-4M → NET appeal + expert evidence.

└ KES 4-9M → Full case + expert witnesses, combined with opposition + media.

RECOMMENDED PATHS

Path A – Clear defect: NET appeal (participation/ESIA) + Track 1 record + information-request

file + media. Highest ceiling.

Path B – Arguable but not clear-cut: build opposition + media; take advice; appeal if a

defect crystallises.

Path C – No legal defect: don't litigate. Win it politically, on the record, and in the press.

Litigation Success Factors

Litigation succeeds when **combined** with the other steps:

- Litigation alone: 20-30%
- Litigation + opposition: 35-45%
- Litigation + opposition + media: 50-70%
- A clear defect — **inadequate public participation** or a **defective ESIA** — can exceed these (as at Lamu), though a cured process may let the project re-apply.

A Tribunal that sees a genuine legal defect, plus visible organised opposition, plus press coverage, treats the matter as serious.

What to Avoid: Legal Failures

- **Litigating instead of organising.** A lone technical point with no visible opposition reads as a niche dispute. Build opposition; litigate with it visible.
- **Missing the 60-day window.** The appeal to the Tribunal has a deadline — don't miss it.
- **Underusing the participation ground.** It is the strongest ground in Kenya — document it and lead with it.
- **Weak grounds.** "This project is harmful" is an opinion, not a legal ground. "NEMA granted the licence without the meaningful public participation the law requires" is a ground the Tribunal can act on — it revoked Lamu on exactly that.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Time to complete: the full 12-month campaign
Cost: ~KES 5 million (KES) for trained spokespeople + ongoing support
Outcome: regular coverage reaching a large audience, political pressure on decision-makers

Success Rate (Media Only): 10-15%
Success Rate (Media + Opposition + Documentation + Legal): 60-75%

Kenya has a strong national press, active broadcast media, a growing investigative-journalism sector, and very heavy social-media and radio use, that cover exactly these fights — and a record of that coverage shifting outcomes. The Lamu coal fight became a national and international story, and that visibility raised the political cost of pushing the plant through.

How Journalists Actually Work

What reporters care about, in order: (1) **news** (something new happened), (2) **consequence** (someone is affected), (3) **timeliness** (it's happening now), (4) **conflict** (a real dispute), (5) **new information**. What they don't care about: your opinion, how angry you are, vague statements, or meetings with no hook.

The Newsworthiness Formula

NEWS = DATA + CONSEQUENCE + TIMELINESS + NEW INFORMATION

- **Bad:** "Residents oppose the project." (no data, no specific consequence, nothing new) → ignored.
- **Good:** "Access-to-information documents show the ESIA meetings were held before the study and never told fishers what the plant would do; the community has appealed to the Tribunal; a ruling is due." → covered.

The difference is roughly a 4-5x change in the likelihood of coverage.

Know the Outlets That Cover This Beat

- **Local and community media** and **vernacular radio** — the audience that reaches your county and national officials.
- **National outlets** — the *Daily Nation*, *The Standard*, and *The Star* — and broadcasters (Citizen TV, NTV, KTN) — for projects with wider significance.
- **Investigative and regional outlets** — *Africa Uncensored* and *The EastAfrican* — for deeper reporting on licences, land, and money.
- **Social media** — powerful in Kenya — plus international outlets for landmark cases (as at Lamu).

Building Reporter Relationships (The Key)

Reporters don't ring campaigners for comment; campaigners ring reporters with tips. Identify 5-10 local, regional, and specialist reporters (environment, energy, land beats). **Contact** them first: "I saw your piece on [similar story]. We've got a similar situation in [place] and I think your readers should know." Then keep the relationship warm over months — a relevant article, an access-to-information document, a milestone — so that when the big story lands, they already know you.

Sample Media Timeline

- Month 1: build relationships (contact five reporters)
- Month 2: first story (the public participation / documented gaps)
- Month 3: press event releasing the survey/information findings; expert available
- Month 4: coalition announcement
- Month 5: march coverage
- Month 6: Tribunal ruling coverage

Real Media Dynamics (Kenyan grounding)

- **Coverage plus mobilisation shifts outcomes:** the Lamu fight combined years of community organising and documentation with sustained national and international coverage that raised the political cost and helped keep the project stalled.
- **Information documents make stories:** a disclosure that contradicts the developer's claims — an ESIA that skipped real consultation, a study that ignored the fisheries — is a gift to a reporter and to the Tribunal.
- **Independent evidence beats the developer's study:** independent ecological, fisheries, or health analysis that contradicts an optimistic **ESIA** lets the press write "experts dispute the developer's figures," and decision-makers take notice.

Media Measurement

Track cumulative stories and reach month over month. **Success indicators:** regular (at least monthly) coverage that carries your message and specific data, and visible decision-maker response. **Failure indicators:** no coverage for 2+ months, superficial coverage that drops your argument, or no response from decision-makers.

SECTION 8: EMAILS & LETTERS YOU CAN COPY

These are ready-to-use messages. Adapt the bracketed parts and send them. Keep them short, specific, and grounded in the law and the evidence — that is what gets read and acted on. The **public-participation submission (8C)**, the **information request (8E)**, and the press release (8G) are among the highest-leverage messages here.

8A. Email to a reporter (story pitch)

Subject: Story tip: [specific finding] – [NEMA / the Tribunal] decides [date]

Dear [Reporter],

I follow your coverage of [beat / recent story]. We have something in [place] your readers should know about, and there's a clear news hook.

In one line: [access-to-information documents / the community's record / an independent survey] show [quantified finding – e.g. "the ESIA meetings were held before the study and never told fishers what the plant would do"], and [NEMA / the Tribunal] decides on [date].

Why it's newsworthy: it's new (just obtained), specific (affects [# people / hectares / fisheries]), and time-sensitive (decision [date]).

I can share the full report and the documents and connect you with [one named expert] for an interview. Would a quick call this week work?

Kind regards,

[Name] – [Organisation] – [phone] – [email]

8B. Letter to NEMA, the county, or an MP/Governor

Subject: [Deny / attach strict conditions to] [project] – ESIA licence [ref]

To [the Director-General, NEMA / the County Governor / the Member of Parliament],

I am a resident of [place] writing about the [project], on which a decision (the ESIA licence) is expected around [date].

The concern, briefly: [one or two specific grounds – e.g. "the public participation was inadequate – meetings held before the study, no real information – and the ESIA ignores the fisheries the community depends on"].

I am asking you to [specific, achievable action – e.g. "deny the licence," or "require strict conditions, real compensation, and a redesign"].

[If true:] [#] residents raised these concerns at the public participation; [#] organisations share them.

I would welcome a meeting and can share our full evidence.

Yours faithfully,
[Name], [address], [phone], [email]

8C. Public-participation submission + documenting the gaps (the decisive record)

PART A – WRITTEN SUBMISSION (ESIA public participation)

To: [NEMA / the ESIA expert], re [project]

Submission on the [project] ESIA. Public participation held/requested [date].

1. Who I am: [name], [community], [interest].
2. Grounds (with evidence):
 - a. [Public participation] – the consultation was inadequate: [meetings before the study / no real information / groups left out]. (Details in Part B.)
 - b. [Defective ESIA] – the study omits [impact], understates [impact], and ignores [the fisheries / community land / water source] documented here.
 - c. [Community land / protected area] – the project affects [X] without consent / harms [protected/heritage area].
3. What I ask: that the licence be DENIED; alternatively, [strict conditions and a redesign].

[Name] – [contact] – Attachments: [baseline / impact / health report]

PART B – RECORD OF THE PARTICIPATION PROCESS (your strongest evidence)

Date/place of each meeting: __. Who was invited / how: __. Who actually attended: __. What information was provided (and when, relative to the study): __. Who was left out: __. Were people able to respond meaningfully? __. (Attach the notice, attendance list, photos, and your notes. This record is the ground that revoked the Lamu licence.)

8D. Coalition outreach email (to an organisation)

Subject: [Organisation] + [project] – a specific ask that fits your work

Dear [Name],

I'm [name] with [organisation] in [place]. We're working on [project], which [one-line stake]. I'm getting in touch because this connects directly to [organisation]'s work on [their aim].

We're not asking you to adopt our whole campaign – just one concrete thing that serves your aims: [tailored ask – e.g. "help us prepare a Tribunal appeal on the public-participation grounds," or "have your researchers assess the fisheries impacts independently," or "help us assert the community's land-consent rights"].

If helpful, I can send a one-page brief and arrange a short call.

With thanks,
[Name] – [Organisation] – [contact]

8E. Access-to-information request (the transparency tool)

To: [NEMA / the authority], Attn: the Access to Information Officer

REQUEST UNDER THE ACCESS TO INFORMATION ACT (Article 35 of the Constitution)

Under the Access to Information Act, I request the following concerning [project] (ref [ref]):

1. The Environmental and Social Impact Assessment (ESIA) study and the ESIA licence (with conditions).

2. The public-participation record: notices, invitations, attendance lists, and minutes.
3. Any lead-agency comments and NEMA's reasons for its decision.
4. For community land: the consent record; for mining: the licence/concession.
5. The correspondence between [the authority] and [the developer], [dates].

This information is needed to protect the environment and the right to a clean and healthy environment. Please respond within the statutory timeframe; if any part is refused, please state the legal basis (I may complain to the Commission on Administrative Justice).

[Name] – [address] – [date]

8F. Legal challenge — Tribunal appeal / constitutional petition (broad standing; get advice)

NOTE: The appeal to the NATIONAL ENVIRONMENT TRIBUNAL must be filed FAST (generally within 60 DAYS of the licence). ANYONE can bring it – NO need to show loss or injury. For a threatened right, an ELC constitutional petition (Arts. 42/69/70) is also open. Seek an INJUNCTION/PRESERVATION ORDER at the ELC if works are imminent.

[APPEAL TO THE NATIONAL ENVIRONMENT TRIBUNAL – heading/form as advised]
[Date]

Appellant(s): [any person / community group], [address].

Respondents: [NEMA] and [the developer]. Decision appealed: [ESIA Licence No. __, dated __].

1. Grounds:
 - Ground 1 – INADEQUATE PUBLIC PARTICIPATION (the ESIA process failed to consult meaningfully: [specifics]).
 - Ground 2 – DEFECTIVE ESIA (omits/understates [impacts]; inadequate mitigation).
 - Ground 3 – harm to [community land / a protected or heritage area / fisheries].
2. Orders sought: REVOCATION of the ESIA licence; and [an order for a fresh, proper ESIA and participation].
3. [If works imminent] an application to the ELC for an INJUNCTION/PRESERVATION ORDER.

[Name / counsel] – [contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE

[HEADLINE: make it NEWS, not opinion]
[Subtitle: consequence + timeliness]

[DATELINE: Place / Date]

[LEAD – answer "why now?"]
[Local coalition] released [study / access-to-information documents / the community's participation record] today showing [specific finding] affecting [# of people / hectares / fisheries].

KEY FINDINGS

- [Quantified impact with citation]
- [Quantified impact with citation]
- [Quantified impact with citation]

[DIRECT QUOTE – specific, from a credible voice, not a slogan]
"[What the finding means]," said [Name, Title].

[CONTEXT – why it matters; reference a documented case where relevant]

[DECISION POINT – create urgency]
[NEMA / the Tribunal] decides on [date].

[CALL TO ACTION] To support or add your submission: [how].

For more: [contact].

CONTACT: [Name / Organisation / Phone / Email]

ATTACHMENTS: full report, access-to-information documents, the participation record, maps, Q&A

8H. Legal strategy decision tree

See Step 4 for the full decision tree — Tracks 1-3, the Tribunal appeal, the constitutional right and broad standing, public participation as the decisive ground, injunctions, the 60-day window, and the budget branches.

SECTION 9: WHEN THE SYSTEM IS TILTED TOWARD APPROVAL (HONEST MECHANICS)

What this means. A system is **tilted toward approval** when the bodies that decide on a project lean, in practice, toward approving it — because the national government is pushing big infrastructure, because counties want investment and jobs, or because the developer's own consultants prepare the environmental study. It rarely means anyone broke the law. Here is how the tilt works — and how communities win anyway.

Important Caveat

This section describes patterns from documented Kenyan dynamics and public policy — flagship-infrastructure pressure, developer-funded studies, most projects licensed, and thin public participation. It is not a statistical claim about "X% of all decisions." Read it as: "where these patterns appear, here is what happens and what it means for opposition."

What This Tilt DOES (and DOESN'T DO)

DOES: create financial and political incentive to approve (jobs, investment, flagship priorities); bias information (the **ESIA** is commissioned by the developer, and reads optimistically); advantage well-resourced developers; and, for a **flagship national project**, bring heavy political backing.

DOESN'T: guarantee approval; make opposition impossible; remove the constitutional **right to a clean and healthy environment**; remove **broad standing** (no injury needed); remove the **public-participation** requirement or the **Tribunal**; or prevent revocations, conditions, and delay. **Lamu was a flagship project with full backing — and the licence was revoked, and the revocation upheld.**

Analogy: a tilted system is like playing on a pitch sloped against you. It makes winning harder, not impossible — so your strategy has to be sharper and more visible, your legal grounds cleaner (lead with **participation**), and your information paper trail solid.

Assessment Framework — Determine Your Situation

GREEN FLAG (low tilt): an ordinary licence with genuine scrutiny; no flagship label; a clear defect; documented participation gaps, community land, or a protected area engaged. → 65-75% with all 5 steps. Proceed with standard opposition.

YELLOW FLAG (moderate tilt): an infrastructure push and a developer-funded **ESIA**, but independent evidence is possible and a legal ground (participation, ESIA) is arguable. → 40-45% with all 5 steps; often win conditions and delay even if not a refusal. Proceed; prioritise the participation and ESIA defects.

RED FLAG (high tilt): a **flagship national project**, developer-only studies, heavy political backing. → 25-30% to stop; 50-60% to modify/delay. Weigh whether delay/conditions justify the investment; lead with the cleanest ground; build power and a record for the next round. (Remember Lamu was red-flag — and it fell.)

Direct Action and Safety: Factual Information (Descriptive, Not Prescriptive)

When licence and legal routes are exhausted, some Kenyan communities have used non-violent direct action — peaceful marches, pickets, and demonstrations. This is descriptive of what has occurred, not guidance.

On safety, be clear-eyed: civic space in Kenya carries real risks. Kenya is not among the very deadliest countries for environmental defenders, and its courts and Tribunal are genuinely open — but organisers and protesters have faced **intimidation, surveillance, arbitrary detention, criminalisation (including trumped-up or public-order charges and defamation or "cyber" suits used to silence critics), and, at times, excessive force by the authorities at protests.** Land conflicts — especially at the coast and around large projects — can be dangerous, and whistleblowers are poorly protected in law. Take the risks seriously: **keep actions non-violent and lawful; notify the authorities of assemblies as required; never organise alone; agree a safety and legal-support plan in advance; document everything; and connect early to human-rights bodies** — the **Kenya National Commission on Human Rights (KNCHR)**, the **Kenya Human Rights Commission (KHRC)**, and defenders' networks — who can provide legal aid and rapid support if organisers are arrested or threatened. If you are threatened or detained, treat it as urgent, tell your networks and a lawyer immediately, and document it. Direct action has drawn attention and delay in documented cases, but on its own rarely stops a project permanently; combined with documentation, the participation case, the Tribunal, and media, it is far more consequential.

Honest Assessment

Where the system is tilted, opposition using licence and legal methods has lower odds of an outright stop — but still reliably wins revocations or conditions, forces delay (often long), imposes political cost, builds durable community power, and creates a record for the Tribunal. And Kenya offers genuine equalisers: a **justiciable constitutional right; standing so broad that anyone can sue without showing injury**; a dedicated, accessible **Tribunal** that can revoke a licence; the decisive **public-participation** requirement; and a real **right to information**. Lamu proves a flagship project can be stopped. Neither scenario makes opposition futile.

SECTION 10: WHEN IT'S ACTUAL CORRUPTION (AND HOW TO EXPOSE IT)

Section 9 covered a system **tilted toward approval** — pressures that are usually lawful. This section covers something narrower and more serious: **actual corruption** — the unlawful or unethical use of a public position for private benefit, or improper influence over a decision. It is a real and significant problem in Kenya — surveys have found most Kenyans believe corruption is high — and where it exists it is both a wrong worth exposing and, strategically, a project's single greatest vulnerability. Kenya has dedicated anti-corruption bodies to receive these matters — but handle them carefully.

What counts as corruption (a spectrum from illegal to merely unethical)

- **Bribery and abuse of office** (offences under the Anti-Corruption and Economic Crimes Act) — money or favours in exchange for a licence or a favourable decision, or a public officer abusing office for gain.
- **Bought licences or approvals** — an ESIA licence, a land allocation, or a permit granted in exchange for a benefit.
- **Land corruption** — irregular allocation of public or community land to a developer (a recurring problem in Kenya).
- **Undisclosed conflicts of interest** — a decision-maker with a hidden stake (land near the site, an interest in the developer, a family tie) who does not step aside.
- **Improper gifts, hospitality, or "facilitation"** flowing from a developer to decision-makers.
- **Manipulated or fabricated studies** — an **ESIA** or a public-participation record skewed or falsified (for example, "attendance lists" of people who were never really consulted).
- **Insider land dealing** — acquiring affected land using non-public knowledge of a coming project.

Red flags to watch for

- A licence granted despite strong objections and expert concerns, with thin or shifting reasons.
- A **public-participation record that doesn't match reality** — attendance lists of people who weren't there, or "consultations" no one remembers.
- Irregular allocation of public or community land to the developer.
- An official who did not step aside despite a personal interest.
- Off-record meetings, or money, gifts, or facilitation flowing from the developer to decision-makers.
- A decision-maker — or a relative — owning affected land or an interest in the developer.
- The same small circle of firms, consultants (ESIA experts), and officials recurring across licences.
- Access-to-information requests met with delay or heavy withholding.

How to document and investigate it (follow the money)

- **Access-to-Information requests** for the licence file, the participation record, contracts, and correspondence.
- **The Auditor-General's reports** on the agency, the county, or the project.
- **Land records** (the land registry and the National Land Commission) — who owns/was allocated the affected land and who profits.
- **Company records** (the business registry) and, for officials, their **wealth declarations**.
- **The participation record** — check whether the "consultation" and its attendance lists were real.
- **Build a timeline**: allocation, gift, or meeting → decision. Corruption is almost always shown by **pattern and timing**, not a confession.
- **Whistleblowers** often break these stories — but protect their identities: Kenya's whistleblower protection is weak, and retaliation is real.

The legal lever: a tainted or irregular decision can be undone

Two features make this powerful. First, a licence granted through a process tainted by corruption, an undisclosed conflict, or a **falsified participation record** can be **revoked by the Tribunal or annulled by the courts** as unlawful — you do not have to secure a criminal conviction first. Second, the offences can be pursued by the **EACC** (investigation), the **ODPP** (prosecution), and the **Assets Recovery Agency**. So documenting a tainted process can be both a **ground to undo the licence** and a matter for the anti-corruption bodies.

Where to report it

- The **Ethics and Anti-Corruption Commission (EACC)** — for corruption and integrity offences.
- The **Director of Public Prosecutions (ODPP)** — which prosecutes.
- The **Auditor-General** — for the misuse of public funds.
- **Investigative outlets** (such as *Africa Uncensored*, the *Daily Nation*, and *The Standard*) — in parallel with the official channels.

Strategy: exposing a tainted process can beat a project

A credible, documented corruption story does several things at once: it triggers scrutiny or an investigation; it can get the licence revoked; it flips media coverage from "local dispute" to "scandal"; it splits the political support behind the project; and it damages the developer's reputation and financing. **Exposing a tainted process is often more powerful than arguing inside it.**

Do this responsibly

- **Stick to documented facts.** Publish the records and the timeline and let readers draw conclusions; frame anything unproven as a question, not an accusation.
- **Mind the legal risks.** Powerful interests use **defamation suits** and sometimes the misuse of **public-order or "cyber" laws** to silence critics; accusing a named person of a crime you cannot prove is risky. Work with a lawyer and an experienced journalist before publishing allegations.
- **Report through the EACC / ODPP / Auditor-General in parallel** with any media, so there is a formal record and an investigation can follow.
- **Protect whistleblowers and yourself.** Protection is weak and retaliation is real; keep identities confidential and stay connected to legal and human-rights networks (Section 9).
- **Don't cry "corruption" without evidence.** Calling ordinary, lawful bias (Section 9) "corruption" destroys your credibility and can expose you to a suit. Keep the two separate — which is exactly why they are separate sections here.

INTEGRATION: HOW ALL FIVE STEPS WORK TOGETHER

Realistic 12-Month Campaign Timeline

Months 1-2 — Foundation + Documentation: identify the target and decision-maker (Step 1); begin baseline surveys, map community land, fisheries, and use, and start the participation record (Step 2); convene the community and form or partner with a coalition vehicle (Step 3); file first **access-to-information** requests and make first reporter contacts (Steps 4-5). *Outcome:* structure forming, the record and paper trail beginning.

Months 2-3 — Public Launch: baseline complete; baraza + turnout for **public participation + documented participation gaps** (Steps 3-4); media event (Step 5). *Outcome:* opposition visible, participation record built, 3-5 stories.

Months 3-4 — Coalition + Impact Analysis: complete impact analysis testing the **ESIA** and the participation (Step 2); expand the coalition and bring in a law group (Step 3); prepare the **Tribunal appeal** grounds (Step 4); data-release press event (Step 5). *Outcome:* broad coalition, legal grounds identified, coverage expanding.

Months 4-6 — Expansion + Health Data: health/livelihood report (Step 2); sustained marches (Step 3, safely); the licence decision (Step 4); expert press events (Step 5). *Outcome:* possible refusal or strict conditions, quantified impacts, regional media.

Months 6-9 — Escalation + Litigation: marches escalating, safety maintained (Step 3); file the **Tribunal appeal** within the 60-day window, and seek an **injunction** if works are imminent (Step 4); ongoing monthly media (Step 5). *Outcome:* sustained pressure, case live, licence possibly revoked.

Months 9-12 — Peak Pressure + Positioning: maintain opposition (Step 3); the ruling / positioning, and watch for a **re-applied licence** after any revocation (Step 4); media momentum (Step 5). *Outcome:* licence + opposition + media + law compound; revocation, conditions, or the project shelved.

Key Principles (What Separates Winning Campaigns from Losing Ones)

1. **Specificity** — "the ESIA meetings came before the study and never told fishers what the plant would do," not "we oppose the project."
2. **Multi-tactic pressure** — public participation + documented gaps + opposition + media + Tribunal appeal, together.
3. **Long-term organising** — sustain 12+ months; prevent burnout; Save Lamu held for years and won.
4. **Documentation first** — build the evidence (including who lives there and the participation record), then use participation and litigate on it.
5. **Coalition building** — 5-10 diverse groups; respect community land authorities and guard against co-option.
6. **Lead with public participation and broad standing** — the decisive Kenyan ground, and the open-door standing, are your strongest levers.
7. **Act within the 60-day window** — the appeal to the Tribunal has a deadline.
8. **Realistic expectations** — expect conditions/modifications/delay; a refusal or revocation is the bonus; expect flagship-project backing and possible re-application.
9. **Persistence and safety** — plan for 12-24 months, keep momentum, and protect organisers and whistleblowers.

Warning Signs — Act Early

Watch for these and respond fast: attendance declining around months 4-5 (burnout); coalition members leaving or being co-opted with jobs or "development" offers; no media coverage for 2-3 months; the case stalling or a licence re-applied after a revocation; fundraising below half your target by month 6; a core organiser leaving without a successor; **threats, detention, or intimidation** against organisers (treat as urgent — see Section 9); or someone new pushing unlawful or reckless tactics. Each has a fix earlier in this guide — catch it early and the campaign holds.

FINAL ASSESSMENT: OUTCOMES & WHEN TO REASSESS

Real Outcomes: What Winning Looks Like

- **Licence refused / revoked / project shelved** (rarer, but real): usually needs overwhelming opposition + a strong participation or ESIA case + heavy media + lower tilt. Lamu (the licence revoked and the revocation upheld) shows even a flagship project can be stopped — and also shows a win can take years and must be defended.
- **Licence modified** (most common victory): strict conditions, genuine compensation, buffers, independent monitoring, redesign — often via NEMA or the Tribunal.
- **Delay / attrition**: stalled for years while the appeal runs; costs mount and financiers lose confidence; the developer sometimes walks away.
- **Defeat**: the project proceeds (sometimes after a re-applied licence with a cured process). Focus then shifts to enforcing conditions and remediation, monitoring compliance, and the next opening.

Decision Point: Continue, Modify, or Reassess

Continue if the legal grounds are live (especially participation and ESIA), the record is strong, opposition is holding or growing, media is at least monthly, the coalition is stable, and organisers are safe.

Modify if attendance is falling, coverage has dropped for 2+ months, coalition members are leaving, the legal position has weakened, the security risk has risen, or you discover the system is more tilted than assessed.

Reassess if, after ~12 months (and perhaps a Tribunal appeal) licence and legal options are exhausted, the decision looks settled despite real effort, the community is exhausted, or resources are gone. Ask: has opposition already won partial victory (conditions, compensation, delay)? Would more effort win more, or just prolong the fight? Should energy shift to enforcing conditions, to the next project, or to the policy?

The Bottom Line

Opposition work can stop or significantly modify destructive projects in Kenya — even where flagship-infrastructure politics and investment point toward approval. Opposition creates multiple, compounding forms of pressure: on the record, politically, in the press, and at the Tribunal. Where the system is tilted, an outright stop is less likely, but opposition still delivers revocations, conditions, compensation, delay, and durable power.

And Kenya offers genuine equalisers: a **justiciable constitutional right to a clean and healthy environment; standing so broad that anyone can enforce it without showing injury**; a dedicated, accessible **National Environment Tribunal** that can revoke a licence; the decisive **public-participation** requirement — the "oxygen" of an environmental study; and a real **right to information**. When a project's process truly cannot stand, the Tribunal can revoke the licence and a court can halt the works — as at **Lamu**, where a flagship coal plant was stopped by an organised community and the revocation was upheld years later. Such a win must then be defended — but it can be defended, and won.

Know your situation. Assess how tilted the system is, honestly. Watch for genuine corruption and refer it to the anti-corruption bodies. Keep organisers safe — civic space here carries real risks. Choose your strategy accordingly. Then organise — with eyes open to both the possibilities and the barriers.

RESOURCES (verified)

- Legal help:**
- **Katiba Institute** — constitutional and public-interest litigation; acted in the Lamu case.
 - **Natural Justice** — environmental-justice lawyers; supported the Lamu case.
 - **Kenya Human Rights Commission (KHRC)** and **Article 19 Eastern Africa**; university legal clinics.
 - **Save Lamu** and the **deCOALonize** campaign — community and coalition organising.

- The decision and the challenge:**
- The **environmental (ESIA) licence** via **NEMA** (*nema.go.ke*); county planning approvals via the **county government**.
 - The **National Environment Tribunal (NET)** — appeals against NEMA decisions; the **Environment and Land Court (ELC)** — appeals and constitutional environmental petitions; then the Court of Appeal and Supreme Court.

Transparency: the **Access to Information Act** (Article 35) — request records from public bodies (and some private ones); complain to the **Commission on Administrative Justice (CAJ)** if refused.

Integrity and anti-corruption: the **Ethics and Anti-Corruption Commission (EACC)** (*eacc.go.ke*); the **Director of Public Prosecutions (ODPP)**; the **Auditor-General**; the **Assets Recovery Agency**.

Protection and human rights: the **Kenya National Commission on Human Rights (KNCHR)** (*knchr.org*); the **KHRC**; and defenders' networks. Report threats and seek legal support early.

Environmental and accountability media: the *Daily Nation*; *The Standard*; *The Star*; broadcasters (Citizen TV, NTV, KTN); *The EastAfrican*; and *Africa Uncensored*; plus vernacular radio and local media.

Nothing here is legal advice. Kenyan environmental, licensing, and land law is technical, and appeal deadlines are short (generally 60 days to the Tribunal). Get advice from a Kenyan environmental lawyer or a public-interest organisation, and seek protection support where needed, before relying on this.

GLOSSARY

Terms are listed alphabetically. Words shown in **bold** in the guide are the ones defined here.

- **Access to Information Act:** the 2016 law giving effect to Article 35 — the right to access information held by public bodies (and some private ones), including for protecting the environment or a right.
- **Article 42:** the constitutional right of every person to a clean and healthy environment.
- **Article 70:** the constitutional provision for enforcing the environmental right — anyone may apply to court, and need not show that any person suffered loss or injury (Article 70(3)).
- **Baraza:** a community meeting or public forum, a central Kenyan institution for public deliberation.
- **CBO (community-based organisation):** a grassroots organisation, a common vehicle for community campaigns.
- **Community Land Act:** the law governing registered community land and the consent required to use it.
- **deCOALonize:** the campaign against coal development that supported the Lamu case.
- **EACC (Ethics and Anti-Corruption Commission):** the national anti-corruption body.
- **ELC (Environment and Land Court):** a specialised superior court for environment and land, hearing appeals from the Tribunal and constitutional environmental petitions.
- **EMCA (Environmental Management and Coordination Act):** the framework environmental law — NEMA, the ESIA system, and the precautionary and polluter-pays principles.
- **ESIA (Environmental and Social Impact Assessment):** the impact study a significant project must undergo, prepared by the developer's consultants, requiring public participation.
- **NEMA (National Environment Management Authority):** the authority that evaluates the ESIA and issues the environmental licence.
- **National Environment Tribunal (NET):** the dedicated tribunal that hears appeals against NEMA's licence decisions and can revoke a licence — the forum that stopped the Lamu coal plant.
- **Polluter-pays principle:** the EMCA principle that the party causing pollution bears its costs.
- **Precautionary principle:** the principle that a risk of serious or irreversible harm justifies protective action even without full scientific certainty.
- **Public participation:** the constitutionally required, meaningful consultation of the public in decisions affecting them — "the oxygen that gives life to" an environmental study, and the decisive ground in Kenyan environmental cases.
- **Standing (locus standi):** the right to bring a case; in Kenyan environmental matters it is exceptionally broad — anyone may sue, with no need to show injury.
- **A system tilted toward approval:** the situation where the bodies deciding on a project lean toward approving it — because the government pushes flagship infrastructure, because the developer's own consultants write the study, or because licences are rarely refused — usually without anyone breaking the law.